

DISSENTING OPINION
OF M. GUERRERO, COUNT ROSTWOROWSKI,
MM. FROMAGEOT AND URRUTIA.

[*Translation.*]

While agreeing, in substance, with the Court's reply to the first question submitted by the Council, the undersigned judges differ from the majority in regard to the reply given to the second question, concerning the interpretation of Article 104 (5) of the Treaty of Peace of Versailles, and of Article 33, paragraph 1, of the Polish-Danzig Convention of Paris, of November 9th, 1920.

Article 104 of the Treaty of Peace of Versailles contains an engagement—not presenting any of the legal characteristics of a mandate—whereby the Principal Allied and Associated Powers undertook to negotiate a convention between Poland and Danzig. This convention, known later as the Convention of Paris of November 9th, 1920, was to ensure the observance and execution of the various provisions of the said article, which was intended to determine the rights of Poland, and the treatment to which Poles were entitled, at Danzig.

It does not result, as a consequence of the Convention having been negotiated in this way, that the Treaty is left with nothing more than a contingent interpretative value.

The Convention of Paris is an executive Convention, which implements the Treaty, and consequently leaves intact the force of the latter. It is one of those arrangements or agreements "made thereunder" which are explicitly referred to in Article 103, together with the Treaty of Peace itself, as subjects for the arbitration of the High Commissioner of the League of Nations at Danzig, in case of differences arising between Poland and the Free City of Danzig.

When one considers the repeated declarations of the Conference of Ambassadors (May 7th, 1920, October 20th, 1920) to the effect that the rights of Poland in regard to Danzig were "recognized" and "assured" by the Treaty of Versailles;

when one considers the similar declarations by Viscount Ishii, Rapporteur to the Council of the League of Nations (November 17th, 1920) to the effect that the rights of Poland in regard to Danzig were "conferred" upon her by the Treaty, and that the restrictions to the sovereignty of the Free City, and the obligations incumbent on the Free City, were "imposed" by the Treaty of Peace; when one considers that the Free City herself (see Memorial, dated September 20th, 1921, concerning the access of Polish war vessels) also declares that Article 104 mentions the economic rights which "Poland enjoys in regard to the Free City by the terms of the Treaty of Versailles"; when one considers that the High Commissioner, for his part, declared (see decision of December 6th, 1921) that the Treaty of Versailles and the Polish-Danzig Convention are the two documents upon which every decision must be based; and finally, when one considers that Article 104 is, in fact, the only article of the Treaty of Peace which relates to the rights of Poland at Danzig, it is difficult to see how it can be maintained, to-day, that the provisions of Article 104 do not contain treaty law governing the relations between Poland and Danzig.

Indeed, the exact opposite is clearly implied in the actual terms of the question, as worded by the Council in the present case, and also in the terms of its question in the preceding case concerning the access of warships to the port of Danzig (Opinion of December 11th, 1931).

In the last-named case, when considering, in accordance with the Council's request, whether Part III, Section XI, of the Treaty of Peace—i.e. Articles 100 to 108—had conferred rights or attributions upon Poland in regard to the access of warships, the Court did not throw any doubt on the full value of Article 104 as the basis of Polish rights at Danzig.

It was subject to these organic stipulations that the Free City was created and constituted. These stipulations have been, and continue to be, the fundamental basis of the rights of Poland at Danzig.

The authors of the Peace Treaty, the Council of the League of Nations, the High Commissioner, the Free City, and lastly the Court itself, have always hitherto taken this view. There

appears no valid reason to-day for departing from so well-founded an opinion.

According to Article 104 (5), no discrimination is permitted at Danzig to the detriment of Polish nationals or other persons of Polish origin or speech.

That is a provision of an absolutely general character.

There is nothing to justify the addition thereto of any restrictions—whether directly or indirectly. There is nothing to justify any limitation of their scope, whether by seeking to circumscribe the category of persons as compared with whom discrimination is forbidden, or by seeking to limit the category of Polish elements entitled to the benefit of the clause, or again, indirectly, by requiring proof that the discrimination is based on an intention to cause prejudice to the Poles.

It cannot be maintained that the discrimination forbidden is to be understood only as based upon the Polish character of those against whom it is practiced. It is easy to see that the effect of Article 104 (5) of the Treaty of Peace would thus be restricted, in the case of Polish nationals at Danzig, who would merely be entitled to equality of treatment with foreigners in general residing in the Free City. It will be readily perceived that, if this were so, a measure which placed the Polish nationals at Danzig in a position of inferiority to the nationals of Danzig would not constitute discrimination such as is forbidden by the Treaty, provided only that it was declared applicable to all persons of other than Danzig nationality.

The only difference between the Polish and Danzig elements at Danzig is that Poles who are not nationals of the Free City do not possess, by reason of that circumstance, any of the rights and duties of a political character which are an essential element of allegiance.

Not only would the opposite interpretation, if admitted, add an arbitrary restriction to the entirely general import of the provisions of Article 104 (5), but it would further result in annihilating one of the clauses of the Peace Treaty, which separated the almost wholly German city of Danzig from Germany, with the sole object of ensuring that Poland—though not invested with sovereignty—and her nationals and other

Polish elements should enjoy an entirely special position—a position differing from that to which foreign countries and their nationals can lay claim in a foreign city, under ordinary law.

Article 33, paragraph 1, of the Convention of Paris remains within the framework of Article 104 (5) of the Treaty of Peace, to which it makes express reference, and to which it states that it conforms. It is a special undertaking by which Danzig has bound herself, in regard to the various Polish elements at Danzig, to provide for the observance of these conditions which governed the creation and establishment of the Free City.

Thus, Article 33, paragraph 1, not only provides for the protection of the minority elements of the Danzig population—including the members of the Polish minority—but also for the full application of the régime, laid down in the Treaty of Peace, to all Poles in general.

It cannot be successfully argued that a draft which the Principal Allied and Associated Powers had, at one time, desired to regard as definitive, provides ground for deducing, in this respect, a further restriction limiting the scope of Article 33, paragraph 1, to a mere application of the Polish Minorities Treaty of June 28th, 1919, to the minorities at Danzig. That draft was not retained, for the very good reason that it was recognized by the Principal Allied and Associated Powers as incomplete, and because it was necessary that the Polish-Danzig Convention, which they had to negotiate in pursuance of the terms of the Treaty, should secure the full benefits of Article 104 (5) to all the Polish inhabitants, in order that it might be in conformity with the said Treaty.

To sum up, under Article 33, paragraph 1, of the Convention of Paris, the Free City undertakes not only to observe, in her treatment of the Poles of Danzig nationality forming a minority of the Danzig population, the rules for the protection of minorities, already stipulated in the Treaty concluded between Poland and the Principal Powers at the same time as the Peace Treaty with Germany; she further undertook, at the same time, not to subject other Polish elements at Danzig to a different treatment from that applied to other

inhabitants of the Free City, whether of Danzig or of other nationality.

The observance of the provisions regarding the various Polish elements at Danzig in accordance with the terms of Article 104 (5) of the Treaty of Peace of Versailles, could only be and are fully secured in this way.

FOR THESE REASONS,

In regard to the second question asked by the Council, the undersigned judges are of opinion that:

Article 104 (5) of the Treaty of Peace of Versailles, which conferred on Poland her rights in the Free City of Danzig, and Article 33 (1) of the Danzig-Polish Convention of Paris, which provided for the observance and application of the first-mentioned stipulation, must be construed as meaning that, as regards Polish nationals and other persons (including Danzig nationals) of Polish origin or speech, these articles ensure in the fullest possible way that in the territory of the Free City of Danzig, there may be no discrimination to the detriment of these various Polish elements, as compared either with foreigners in general or with Danzig nationals who are not of Polish origin or speech, except as regards rights of a political character inherent in the capacity of a citizen of Danzig, no matter what the basis of such discrimination may be or the intention underlying it.

(Signed) J. G. GUERRERO.

(„) M. ROSTWOROWSKI.

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